

APPLICATION TO THE CIVIL CLAIMS LIST

This document is a record of the application made to VCAT on **31/10/2018**.

Privacy statement

A copy of VCAT's privacy policy can be found at www.vcat.vic.gov.au/privacy on the VCAT website.

Application details

Act details

Are you making this application in response to a claim made by a supplier in a Victorian court (not VCAT)?

No

Which Act are you making this claim under?

Australian Consumer Law and Fair Trading Act 2012

Are you making this application in response to another VCAT application that has been served on you?

No

Are you seeking an injunction? (Note: An additional fee applies)

No

Claim amount

What is the total value of the claim you are making? (Leave blank if you are not making a monetary claim)

\$800.00

Applicant details

Applicant 1

Who is making this application?

As an applicant are you?

An individual

What are your details?

First name

Richard

Last name
Mclean

Do you wish to be identified as a person of Aboriginal and/or Torres Strait Islander descent?
No

What is your address?
Address
24 Rosella Court, Ocean grove, VIC, 3011

How can VCAT contact you?
Name/s of contact person
Richard Mclean

Contact number
0418391532

Email
rich@richmclean.com.au

Do you want VCAT notices and correspondence emailed to you?
Yes

Applicant representation
Are you represented by a lawyer or professional advocate?
No

Respondent details

Respondent 1

Who are you making this claim against?
Type of respondent
A company

Respondent details
Full registered company name as shown on ASIC company extract
CBD MOVERS

Trading as (if applicable)
CBD MOVERS

ACN
139679100

ASIC company extract supplied
Yes

What is the respondent's address and contact details?
Address
22 Lewin's Rail Ave, South Morang, VIC, 3752

Email
cs@cbdmovers.com.au

Respondent representation
Is the respondent represented by a lawyer or a professional advocate?
Don't know

Claim details
Details of your claim
Type of claim
Goods and services

What type of goods were bought, sold or given to you and/or what was the nature of the services supplied or given?
CBD movers moved my furniture from Footscray to Ocean Grove on the 9th Oct

When were the goods purchased and/or the services supplied?
09/10/2018

When did you become aware of the problem or defect?
09/10/2018

The problem with the goods and/or services
What is the problem with the goods and/or services?
The movers were late, unprofessional, did not intervene when I helped move and injured my arm, damaged furniture and antique goods.
I wrote to them many times and they are stalling, asking for evidence which I have.
I have photos and witnesses.

What orders do you want VCAT to make?

An order that the respondent pay me the amount of my claim

Why do you want these orders?

The goods/services do not fulfil all the purposes which I made known to the salesperson or supplier which would have been known to the sales person or supplier, The goods are not of acceptable quality, The goods do not match their description on the website/catalogue/order from/other, The respondent or the respondent's representative misled me about the goods/services, The manufacturer of the goods was unable to repair them or provide me with spare parts, The product resulting from the service did not fulfil the purpose which I made known to the salesperson or would have been known to the sales person, The service was not rendered with due care and skill, The service was not supplied in a reasonable time, The respondent made a false or misleading representations in connection with or when promoting the service, The respondent breached the contract to provide goods/services for the reasons set out in the section "What is the problem with the goods and/or services" above

Claim amount

\$800.00

Hearing arrangements**Do you or any other person appearing at the hearing need special assistance?**

No

Acknowledgement

First name of person completing this application

Richard

Last name of person completing this application

McLean

I understand and acknowledge that:

- ☒ to the best of my knowledge, all information provided in this application is true and correct
- ☒ it is an offence under Section 136 of the Victorian Civil and Administrative Tribunal Act 1998 to knowingly give false or misleading information to VCAT

Date of certification

31/10/2018